

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liabile-D excess burden	Gross outcome error	Total expenditures
American	0.181	0.147	0.010	0.269	0.107
Trial Fee-Shifting	0.166	0.145	0.009	0.259	0.091
Complete Fee-Shifting	0.179	0.160	0.013	0.278	0.127